

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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RONALD COTTON, JOHNNIE McBRIDE, ARLENE
MURRAY, MARTHA SALTER, and SONIA WINLEY,

Plaintiffs,

-against-

THE CITY OF NEW YORK, a municipal entity;
NYPD Officer THOMAS MANNION (Shield # 4905), in
his individual capacity; NYPD Sergeant MICHAEL
WEBER, in his individual capacity; NYPD Detective
SOPHIA CARSON (Shield # 27627), in her individual
capacity; NYPD Detective PAUL ORTIZ (Shield # 17139),
in his individual capacity; and NYPD Officers JOHN and
JANE DOEs, in their individual capacities,

Defendants.
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COMPLAINT

JURY TRIAL DEMANDED

Index No.:

Plaintiffs RONALD COTTON, JOHNNIE MCBRIDE, ARLENE MURRAY, MARTHA
SALTER, and SONIA WINLEY, by and through their attorneys, Bernstein Clarke & Moskovitz
PLLC, allege as follows:

PRELIMINARY STATEMENT

1. On May 30 and October 2, 2015, New York City Police Department (“NYPD”) officers raided a licensed and lawfully operated social club for senior citizens at 69 Lexington Avenue, Brooklyn, New York. During those raids, officers assaulted and illegally strip searched occupants of the club, including certain of the Plaintiffs. The Defendants then arrested the Plaintiffs and others without probable cause and submitted false allegations to the District Attorney’s Office to support baseless criminal charges, which were all eventually dismissed. The Defendants’ actions violated the constitutional rights of the Plaintiffs.

2. The City of New York has known of a long-standing problem of NYPD officers conducting illegal strip searches. Nonetheless, the City has not taken appropriate measure to correct that problem. As a result, unconstitutional strip searches continue to be carried out by NYPD officers, just as they were in this case.

3. Through this lawsuit, the Plaintiffs seek to vindicate their constitutional rights, to obtain damages for their injuries, and to see that the Defendants are held accountable for their misconduct. They also hope to highlights the offensive practice of unconstitutional strip searches in hopes that the City and the NYPD will undertake the necessary and appropriate steps to ensure this deplorable practice is stopped.

JURISDICTION

4. This action is based on 42 U.S.C. § 1983 for violations of plaintiffs' rights secured by the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

5. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

6. Venue is proper in Kings County pursuant to C.P.L.R. § 503(3) as this is an action against the City of New York and its officers, and Kings County is where the events giving rise to this action took place.

JURY DEMAND

7. Plaintiffs demand a trial by jury in this action on each and every one of their claims for which jury trial is legally available.

THE PARTIES

8. Plaintiff RONALD COTTON is a citizen of the United States and of the State of New York and at all times relevant to this complaint, he resided in Kings County.

9. Plaintiff JOHNNIE MCBRIDE is a citizen of the United States and of the State of New York and at all times relevant to this complaint, he resided in Kings County.

10. Plaintiff ARLENE MURRAY is a citizen of the United States and of the State of New York and at all times relevant to this complaint, she resided in Kings County.

11. Plaintiff MARTHA SALTER is a citizen of the United States and of the State of New York and at all times relevant to this complaint, she resided in Kings County.

12. Plaintiff SONIA WINLEY is a citizen of the United States and of the State of New York and at all times relevant to this complaint, she resided in Kings County.

13. Defendant THE CITY OF NEW YORK (“the City”) is a municipal entity created and authorized under the laws of the State of New York.

14. The City is authorized by law to maintain a police department and does maintain the New York City Police Department (hereinafter referred to as “NYPD”). The NYPD acts as the City’s agent and the City assumes the risks incidental to the maintenance of a police department and the employment of police officers.

15. Defendant THOMAS MANNION (Shield # 4905) was, at all times relevant to this complaint, an NYPD police officer assigned to the Narcotics Borough Brooklyn North command. He is sued in his individual capacity.

16. Defendant MICHAEL WEBER was, at all times relevant to this complaint, an NYPD sergeant assigned to the Narcotics Borough Brooklyn North command. He is sued in his individual capacity.

17. Defendant SOPHIA CARSON (Shield # 27627) was, at all times relevant to this complaint, an NYPD Detective assigned to the Narcotics Borough Brooklyn North command. She is sued in her individual capacity.

18. Defendant PAUL ORTIZ (Shield # 17139) was, at all times relevant to this complaint, an NYPD Detective assigned to the Narcotics Borough Brooklyn North command. He is sued in his individual capacity.

19. Defendants JOHN and JANE DOEs were, at all times relevant to this complaint, NYPD officers, detectives, and/or sergeants assigned to the Narcotics Borough Brooklyn North command and were members of the NYPD's "79 Field Team." Their identities are presently unknown. They are sued in their individual capacities.

20. Upon information and belief, at all relevant times, the individual defendants were and are citizens of the United States and the State of New York.

21. At all relevant times, the individual defendants were employed by the City and acted under color of law in the course and scope of their duties and authority as officers, agents, servants, and employees of the NYPD and the City.

22. At all relevant times, the individual defendants violated plaintiffs' clearly established rights under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution of which reasonable law enforcement officers in their respective circumstances would have known were violations of plaintiffs' rights.

STATEMENT OF FACTS

23. In 2015, a social club with primarily senior citizen members operated lawfully at 69 Lexington Avenue in Brooklyn.

24. Upon information and belief, the club had a liquor license and other proper business registrations.

25. On May 30, 2015, NYPD officers, including Defendants Sophia Carson, Paul Ortiz, and John and Jane Doe officers, entered the social club at 69 Lexington Avenue.

26. Plaintiffs Martha Salter, Arlene Murray, and Sonia Winley were present in the club at that time.

27. One of the defendant officers unlawfully searched Plaintiff Arlene Murray's bag.

28. Another defendant officer, a black, female officer in her 20s or 30s, unlawfully strip searched Plaintiff Arlene Murray.

29. Plaintiffs Martha Salter, Arlene Murray, and Sonia Winley were arrested without probable cause they had committed any offense.

30. Plaintiff Martha Salter was given a Desk Appearance Ticket charging her with criminal possession of a controlled substance, which she had not done.

31. The Kings County District Attorney's Office declined to prosecute a case against Plaintiff Martha Salter.

32. On October 2, 2015, NYPD officers, including Defendants Thomas Mannion, Michael Weber, and John and Jane Doe officers who were members of the "79 Field Team," entered the social club at 69 Lexington Avenue.

33. Plaintiffs Ronald Cotton, Johnnie McBride, Arlene Murray, and Sonia Winley were present in the club.

34. One of the defendant officers assaulted Plaintiff Ronald Cotton.

35. One of the defendant officers assaulted Plaintiff Johnnie McBride.

36. One of the defendant officers, a white male in his 30s or 40s, hit Plaintiff Arlene Murray, who was one day away from turning seventy years old, with a shield knocking her to the ground.

37. Plaintiff Arlene Murray was handcuffed and interrogated in the club.

38. One of the defendant officers, a black female officer, illegally searched Plaintiff Arlene Murray's person and bag.

39. One of the defendant officers conducted a strip search of Plaintiff Sonia Winley.

40. Defendant Sgt. Michael Weber authorized the illegal strip search of Plaintiff Sonia Winley.

41. Plaintiffs Ronald Cotton, Johnnie McBride, Arlene Murray, and Sonia Winley were arrested without probable cause they had committed any offense.

42. Defendant Thomas Mannion was the assigned arresting officer for the arrests of Plaintiffs Ronald Cotton, Johnnie McBride, Arlene Murray, and Sonia Winley.

43. Defendant Thomas Mannion provided false information to the Kings County District Attorney's Office, causing baseless but serious charges to be brought against the Plaintiffs.

44. After the Plaintiffs were released from custody following the October 2 incident, Plaintiffs Ronald Cotton, Johnnie McBride, and Arlene Murray sought medical treatment for injuries they sustained during their arrest.

45. Because of the May and October 2015 incidents, the social club at 69 Lexington Avenue stopped operating.

46. The NYPD has a long-standing problem with its officers conducting illegal strip searches.

47. In May 2004, the Civilian Complaint Review Board issued a Recommendation following its review of cases in which illegal strip searches were conducted. The review was undertaken because of “the high rate at which, following a full investigation conducted by [CCRB] investigative staff, the board substantiates strip-search allegations.”

48. The CCRB’s Recommendation revealed that “in most of the cases officers, often supervisors, told CCRB investigators that they or their commands routinely conducted” illegal strip searches. The CCRB investigation also turned up that officers often misunderstood the standards for conducting legal strip searches.

49. The CCRB Recommendation also noted that the cases involving illegal strip-searches that it had reviewed “involved officers assigned primarily to narcotics units,” including Narcotics Borough Brooklyn North.

50. The individual defendants were all assigned to the Narcotics Borough Brooklyn North.

51. In 2010, news reports appeared about a federal lawsuit filed against NYPD Detective Charles Derosalia alleging that he had illegally strip searched eighteen different women.

52. In 2012, reports appeared in the news of NYPD officers having illegally strip searched Carissa Quinones, who was seven-and-a-half months pregnant at the time.

53. In 2016, new outlets reported on allegations that NYPD Officer Shaquanna White had illegally strip searched Tynneal Grant. According to those reports, Officer White’s testimony at a departmental trial revealed that she grossly misunderstood when a strip search is permissible.

54. Upon information and belief, numerous lawsuits have been filed over the past decade regarding illegal strip searches by NYPD officers.

55. This, and other evidence that is believed to exist, show that the NYPD has a persistent problem with officers conducting illegal strip searches.

56. Upon information and belief, the City has not undertaken necessary or adequate measure to address the problem of illegal strip searches and has failed to adequately train officers on the limitations on strip searches.

57. As a direct result of the defendants' conduct, plaintiffs suffered the violation of their federal constitutional rights.

58. Plaintiffs also suffered the loss of their liberty, physical and mental/emotional pain and suffering, distress, humiliation, and fear.

FIRST CAUSE OF ACTION

42 U.S.C. § 1983 Against the Individual Defendants

59. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

60. In committing the acts and omissions complained of herein, the individual defendants acted under color of state law, individually and in concert, to deprive plaintiff of his constitutionally protected rights under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the freedom to associate with others;
- b. the right to be free from unreasonable searches and seizures;
- c. the right to be free from arrest without probable cause;
- d. the right to be free from deprivation of liberty without due process of law;
- e. the right to be free from detention and prosecution without probable cause;

f. the right to a fair trial.

61. In committing the acts and omissions complained of herein, the defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

62. As a direct and proximate result of the defendants' deprivation of plaintiffs' constitutional rights, plaintiffs suffered the injuries and damages set forth above.

63. The unlawful conduct of defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CAUSE OF ACTION

42 U.S.C. § 1983 Against the City of New York

64. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

65. The City of New York, acting through the New York City Police Department and its agents, officers, and employees, has acted with deliberate indifference to the rights of the people of the City of New York to not be subjected to unconstitutional strip searches.

66. The City, has known for many years that NYPD officers routinely conduct illegal strip searches, and that NYPD officers misunderstand the constitutional limitations on conducting lawful strip searches.

67. In the face of this continuing problem, the City has remained indifferent and failed to adequately train, supervise, and discipline NYPD officers to ensure that they do not conduct illegal strip searches.

68. The City's deliberate indifference to the constitutional rights of the people of the City of New York – and its persistent failure to adequately train NYPD officers in the constitutional limitations on strip searches, and to appropriately supervise and discipline NYPD

officers who conduct unlawful strip searches – was the moving force of the unconstitutional strip searches complained of herein.

69. As a direct and proximate result of the defendants' deprivation of plaintiffs' constitutional rights, plaintiffs suffered the injuries and damages set forth above.

DEMAND FOR RELIEF

WHEREFORE, plaintiffs demand the following relief against the defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages from the individual defendants to the extent allowable by law;
- (c) attorneys' fees;
- (d) the costs and disbursements of this action;
- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: New York, New York
May 30, 2018

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